

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 11, 2026
8:30 AM/1:30 PM

15. DCSS V. DAVID HARTSOCK III (OTHER PARENT: SYNDALEE VILLAFUERTE)

PFS20140004

Other Parent filed a Request for Order (RFO) on December 22, 2025, seeking a modification of child custody orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on January 21, 2026, and a review hearing on March 19, 2026. Proof of Service shows Respondent was served with only the FL-300 and RA-010 and 0202. There is no Proof of Service showing Petitioner was properly served.

Only Other Parent appeared at the CCRC appointment. As such a single parent report was filed with the court on March 3, 2026. Copies were mailed to the parties on March 4th.

On March 19, 2026, Other Parent appeared for the hearing and requested the matter be continued to allow time to perfect service. The court granted the request and rereferred the parties to CCRC.

Proof of Service shows Respondent was mail served on March 30, 2026 and May 15, 2026. There is no Proof of Service Showing DCSS was properly served.

Once again, only Other Parent appeared at the CCRC appointment. Once again, a single parent report was filed with the court, on May 20th. Copies were mailed to the parties on May 26, 2026.

There have been no Responsive Declarations filed by either Petitioner or Respondent.

The court drops the matter from calendar for failure to properly serve Petitioner.

All prior orders remain in full force and effect.

TENTATIVE RULING #15: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE FAILURE TO PROPERLY SERVE PETITIONER. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).* NOTICE TO ALL

LAW & MOTION TENTATIVE RULINGS

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PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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16. SONIA JOHNSON V. THOMAS JOHNSON

PFL20190519

Petitioner filed a Request for Order (RFO) on February 25, 2026, following the court's denial of her ex parte application. Petitioner seeks an order from the court to place the proceeds of the sale of the former marital residence into a constructive trust. Petitioner further seeks Family Code section 271 sanctions in the amount of \$2,500. Upon reviewing the court file, there is no Proof of Service showing the RFO was served on Respondent.

Petitioner appeared for the hearing on April 23, 2026, and requested the matter be continued to allow her to perfect service. The court granted the request and continued the matter to June 11, 2026.

Proof of service shows Respondent was served on May 11, 2026.

Petitioner filed an Income and Expense Declaration on May 28, 2026. It was served to Respondent on May 28th.

Respondent has not filed a Responsive Declaration to Request for Order, therefore, the court deems his failure to do so as an admission that Petitioner's moving papers have merit. See El Dorado County, Local Rule 7.10.02(C).

The court grants the request of Petitioner to place the proceeds of the sale of the home in a constructive trust account provided by Petitioner.

Petitioner's request for Family Code section 271 sanctions is denied. Petitioner is not represented by counsel, and as such, sanctions in the form of attorney's fees is not appropriate.

All prior orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #16: THE COURT GRANTS THE REQUEST OF PETITIONER TO PLACE THE PROCEEDS OF THE SALE OF THE HOME IN A CONSTRUCTIVE TRUST ACCOUNT PROVIDED BY PETITIONER. PETITIONER'S REQUEST FOR FAMILY CODE SECTION 271 SANCTIONS IS DENIED. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S